

25CHCV01732 25CHCV01732

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C09%2F24%2F2026

Source SHA-256: c7251f7b15e75cd80b69afcd59a711409d37745ea50d2bde2afd60e79a5befa2

Case Number: 25CHCV01732 Hearing Date: September 24, 2026 Dept: F46

Dept. F-46

Hearing Date: September 24, 2026

Case Number: 25CHCV01732

MOTION FOR

ATTORNEYS' FEES

Motion filed on June 25, 2026.

MOVING PARTY: Plaintiff Anna L. Brief-Mueller

RESPONDING PARTY: Defendant General Motors LLC

NOTICE: OK.

RELIEF REQUESTED: Plaintiff requests \$10,865.50 in attorney fees under Civil Code section 1794, subdivision (d), consisting of \$7,865.50 in incurred fees and \$3,000 in anticipated fees for reviewing Defendant's opposition, preparing a reply, and attending the hearing.

RULING: Granted in part. The Court awards \$7,865.50 in attorney fees.

BACKGROUND/DISCUSSION

On May 19, 2025, Plaintiff Anna L. Brief-Mueller (Plaintiff)

filed a Complaint against General Motors LLC (Defendant) concerning a 2024 Chevrolet Silverado 1500. (Compl. ¶¶ 6, 11-12.) Plaintiff alleged five causes of action under the Song-Beverly Consumer Warranty Act for violations of Civil Code section 1793.2, subdivisions (d), (b), and (a)(3), breach of express written warranty, and breach of the implied warranty of merchantability. (Compl., pp. 4-8.) Defendant filed its Answer on June 23, 2025.

The parties settled the action for \$140,000, consisting of a repurchase of the vehicle and \$56,692.19 in civil penalties, and agreed that Plaintiff could seek attorney fees under Civil Code section 1794, subdivision (d). (Fennell Decl. ¶¶ 14-16.) On May 5, 2026, Plaintiff filed a Memorandum of Costs seeking \$677.09 in costs. Plaintiff filed this motion seeking attorney fees on June 25, 2026.

On September 11, 2026, Defendant filed a Notice of Non-Opposition. Defendant does not oppose the \$7,865.50 in fees actually incurred, but requests that the additional \$3,000 in anticipated fees be disallowed because Defendant filed no substantive opposition. (Notice of Non-Opposition, pp. 1-2.)

Under Civil Code section 1794, subdivision (d), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” The Court must determine whether both the time expended and the amount charged for that time are reasonable. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817-818.) The lodestar method applies to attorney fee awards under section 1794, subdivision (d). (Id. at pp. 819-820.)

Here, the billing records reflect hourly rates of \$510 and \$525 for Joshua Fennell, \$425 and \$440 for Eesha Dalia, \$440 for Bobby Walker, and \$215 for paralegal work. (Fennell Decl. ¶¶ 17-19, 41, Ex. 19.) Fennell was admitted to practice in 2018 and has litigated numerous Song-Beverly matters both at Consumer Law Experts and at a prior lemon-law firm. (Fennell Decl. ¶ 17.) Dalia was admitted in 2019 and has experience in civil, employment, and transactional litigation. (Fennell Decl. ¶ 18.) Walker was admitted in 2018 and has litigated Song-Beverly matters on both the manufacturer and consumer sides.

(Fennell Decl. ¶ 19.) Plaintiff also submits recent fee orders approving Fennell's rates of \$510 and \$525 per hour and CLE associate rates of \$440 per hour. (Fennell Decl. ¶¶ 34-36.) Defendant does not challenge the rates. The Court finds the rates reasonable.

Plaintiff seeks compensation for 17.7 hours of attorney and paralegal time actually expended. (Fennell Decl. ¶¶ 37, 39, Ex. 19.) The billing records reflect 3.3 hours by Fennell at \$510 per hour and 4.3 hours at \$525 per hour, 6.1 hours by Dalia at \$425 per hour and 2.0 hours at \$440 per hour, 0.1 hour by Walker at \$440 per hour, and 1.9 hours of paralegal time at \$215 per hour, for a total of 17.7 hours and a lodestar of \$7,865.50. (Fennell Decl., Ex. 19.) The billing records reflect work on the complaint and initial disclosures, mediation and settlement, the memorandum of costs, and this fee motion. (Fennell Decl. ¶¶ 13, 37, Ex. 19.) Counsel states the billing records were reviewed and audited for unnecessary, duplicative, administrative, or excessive entries, which were removed or reduced. (Fennell Decl. ¶ 37.) Defendant does not challenge the hours incurred. The Court finds the 17.7 hours reasonable.

Plaintiff also requests \$3,000 in anticipated fees for reviewing Defendant's opposition, preparing a reply, and attending the hearing. (Fennell Decl. ¶¶ 38-39.) Defendant filed a Notice of Non-Opposition rather than a substantive opposition. No timely reply was filed, and Plaintiff submitted no supplemental declaration identifying any additional time actually incurred after the motion was filed. The record therefore does not establish that the anticipated \$3,000 was actually expended or reasonably incurred. The Court declines to award that additional amount.

CONCLUSION

Plaintiff's Motion for Attorneys' Fees is GRANTED IN PART.
The Court awards Plaintiff \$7,865.50 in attorney fees.